

Mohd. Ramjan v. Kanpur Electricity Supply Company Ltd.

High Court of Judicature at Allahabad · Division Bench · 29 March 2016 · Writ-C No. 13670 of 2016 · **Writ disposed of; petitioner relegated to clause 6.5(b) complaint; recovery stayed four weeks; connection to be restored on deposit.**

HEADNOTE

A consumer who disputes the accuracy of an electricity bill and challenges recovery of outstanding dues must complain under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. The writ court will not decide such disputed questions of fact. Recovery remains in abeyance for four weeks or until the complaint is decided, whichever is earlier, and the connection is to be restored forthwith after the billed amount is deposited.

FACTUAL SUMMARY

Mohd. Ramjan, a consumer of Kanpur Electricity Supply Company Ltd., filed a writ petition in the Allahabad High Court challenging recovery proceedings initiated by the company for outstanding electricity dues. He also challenged the correctness of the bill on which the recovery was based. Counsel for both sides were heard. The petition raised disputed questions of fact concerning the billed amount.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

billing complaint for disputed bill accuracy

HOLDING

Where a consumer challenges recovery of electricity dues by disputing the accuracy of the bill, and disputed questions of fact arise, the writ court will not decide the billing dispute on merits. The consumer is to make a complaint before the competent authority under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. Recovery remains in abeyance for four weeks or until disposal of that complaint, whichever is earlier, and shall abide by the authority's order. After the consumer deposits the amount, the electricity connection shall be restored forthwith. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND OTHER DISPUTED QUESTIONS OF FACT

Left to the competent authority under clause 6.5(b). ¶ 1